

## 25CHCV02497 25CHCV02497

County: los-angeles

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Case Number: 25CHCV02497 Hearing Date: July 14, 2026 Dept: F43

Dept. F43

Hearing Date: 07-14-26

Case # 25CHCV02497, Sendra, Jr.

v. Senda

Trial Date: 02-13-29

MOTION FOR LEAVE TO

RECORD A SUBSEQUENT NOTICE OF PENDENCY OF ACTION (LIS PENDENS)

MOVING PARTIES: Plaintiffs Margarito Senda, Jr. and Armando

Senda, in pro per

RESPONDING PARTY: Defendant Lucia Senda, in pro per

RELIEF REQUESTED

Order granting plaintiffs leave to record a subsequent notice of pendency of action (lis pendens) against real property commonly known as 12022 Pierce Street, Sylmar, California 91342.

RULING: Motion is denied without prejudice.

SUMMARY OF ACTION

On July 15, 2025, plaintiffs Margarito Senda,

Jr. and Armando Senda (Plaintiffs) filed this quiet title action seeking cancellation of a quitclaim deed recorded against real property located at 12022 Pierce Street, Sylmar, CA 91342 (the Property). Plaintiffs allege the Property was held in the Margarito Senda, Sr. Family Trust, created by Plaintiffs' father Margarito Senda, Sr., for the benefit of all his children. (Compl. ¶¶ 4-5.) Plaintiffs further claim they are named beneficiaries of the trust and are successors to the trust. (Id. ¶ 6; see also id. at p. 14 [listing beneficiaries, including plaintiffs].) Margarito Senda, Sr. was 89 years old when this action was filed. On February 26, 2024, a quitclaim deed was recorded, indicating title to the Property was transferred from the trust to defendant Lucia Senda (Defendant). (Id. ¶ 7.) According to Plaintiffs, this transfer was executed without proper notice, consent, or authority, without the knowledge of the beneficiaries or successor trustees, that Margarito Senda, Sr. lacked capacity and was unduly influenced to sign the transfer, and that Defendant acted in bad faith. (Id. ¶¶ 8-10.) Defendant has refused to return and restore the Property to the trust. (Id. ¶ 10.) The Complaint asserts cancellation of instrument and quiet title causes of action.

Plaintiffs are self-represented.

On July 16, 2025, Plaintiffs filed a notice of a proposed lis pendens on this action, which the court (Hon. Judge Gary Micon) approved and signed on July 23, 2025. At some point, Plaintiffs recorded the lis pendens against the Property. On October 28, 2025, Plaintiffs personally served Defendant with the lis pendens, the summons, and Complaint.

Defendant filed an answer on November 17, 2025 and is self-represented in this matter.

On May 11, 2026, Defendant moved to expunge the lis pendens because Plaintiffs failed to comply with the mandatory service and recording requirements of Code of Civil Procedure section 405.22. The court granted the motion.

On June 17, 2025, Plaintiffs filed a motion for leave to record a new notice of pendency of action (lis pendens). Defendant opposed on June 23, 2026. No reply was filed.

ANALYSIS

A. Granting leave

to file a Notice of Pendency of Action (Lis Pendens) after the initial notice is expunged

“Once a notice of pending action has been expunged, the claimant may not record another notice of pending action as to the affected property without leave of the court in which the action is pending.” (Code Civ. Proc., § 405.36.) A party whose lis pendens has been expunged is not precluded from filing another notice of lis pendens that complies with the requirements of Code of Civil Procedure sections 405.20 and 405.22. (McKnight v. Superior Court (1985) 170 Cal.App.3d 291, 303.) Where the original expungement was based solely on a technical service defect and there is no evidence of bad faith or improper purpose in the underlying action, the expungement does not preclude the plaintiff from refileing a procedurally compliant lis pendens. (Id.)

Plaintiffs seek to file a new lis pendens to prevent third parties from acquiring interests in the Property during the pendency of this action. According to Plaintiffs, such interests would create additional complications and impair the court’s ability to grant complete relief. Plaintiff Margarito Senda, Jr. presents a supporting declaration, demonstrating the need for a lis pendens: Plaintiffs seek court action concerning ownership of the Property which was originally owned by the Margarito Senda, Sr. Revocable Trust; issues concerning Margarito Senda, Sr. executing a quitclaim deed transferring ownership of the Property solely to Defendant; and whether the quitclaim deed was executed due to undue influence, lack of capacity, and in a manner inconsistent with the intent of the Trust and rights of the beneficiaries. (Declaration of Margarito Senda, Jr. ¶¶ 2-11.)

In opposition, Defendant claims Plaintiffs cannot assert a real property claim because their complaint is unverified and does not satisfy the statutory requirements for a quiet title claim. Defendant also claims the prior violations (no pre-recording service and not recording the proof of service with the lis pendens) were substantive rather than technical, that her actual notice of this matter does not cure the statutory noncompliance, and Plaintiffs’ claimed risk of transfer does not override the statutory requirements or hardship to the property owner.

First, Defendant's motion to expunge addressed only the service and recordation defects, not the substance of Plaintiffs' claims in this matter and whether Plaintiffs filed this matter in bad faith. In granting the motion, the court found the previous lis pendens was void for technical violations and did not make any findings on whether Plaintiffs assert a real property claim and whether Plaintiffs filed this action in bad faith. Moreover, the service and recordation of a proof of service are technical requirements for lis pendens. (Code Civ. Proc., § 405.22; see generally McKnight, supra, 170 Cal.App.3d 291 [discussing predecessor statute Section 409, subdivisions (c) and (d)].) The prior lis pendens was expunged based solely on technical violations (failure to serve Plaintiff by mail and record the proof of service with the lis pendens). (6/16/26 Minute Order; 5/11/26 Motion to Expunge Lis Pendens.) Thus, Plaintiffs are entitled to seek leave of the court to file a new lis pendens.

Although actual notice does not cure statutory noncompliance and Plaintiffs are still required to serve the notice of lis pendens by mail, Plaintiffs' failure to do so with the prior lis pendens does not affect a subsequent lis pendens. The court agrees that compliance with statutory requirements – “service by certified mail” and “recordation of the proof of service” – is necessary regardless of hardship to the property owners. (Carr v. Rosien (2015) 238 Cal.App.4th 845, 853 [purpose of the mailing requirement is to ensure “all owners of the property, and all adverse parties claiming an interest in the property, are aware of the lis pendens.”].) The court notes that in granting the motion to expunge, Plaintiffs failed to present evidence demonstrating they attempted to mail the prior lis pendens to Defendant or that Defendant was actively evading service.

“Under California law, a claimant recording a lis pendens must mail a copy of the notice by registered or certified mail, return receipt requested, to all known addresses of adverse parties and record owners before recordation. (Code Civ. Proc., §§ 405.22, 1013a.) When a defendant deliberately refuses to sign for or accept certified mail, California courts have consistently held that the defendant cannot defeat the statutory service requirement through willful evasion. (Hankla v. Governing Board (1975) 46 Cal.App.3d 644, 655; Bear Creek Master Assn. v. Edwards (2005) 130 Cal.App.4th 1470, 1485-1488 [finding willful evasion where defense counsel refused to sign for certified letters, which were

returned by the post office, while the concurrent first-class mail copies were not returned].) Proper mailing to the correct address — even if the defendant refuses to claim or sign for the mail — constitutes valid service.”

Accordingly, if the court grants Plaintiffs' motion for leave, Plaintiffs' must comply with all statutory requirements for a lis pendens, including the pre-recording certified mail service requirement and the recording of the new lis pendens with the proof of service attached.

However, the court does find that Plaintiffs did not properly verify their Complaint.

Complaints asserting quiet title must be verified. (Code Civ. Proc., § 761.020.) When the complaint is verified by a person, the person “need not swear to the truth or his or her belief in the truth of the matters stated therein but may, instead, assert the truth or his or her belief in the truth of those matters ‘under penalty of perjury.’” (Code Civ. Proc., § 446, subd. (a).) The verification must state that the matters

in the complaint are true of the verifier's own knowledge, except as to matters stated on information and belief, and as to those matters the verifier believes them to be true. (Id.) Moreover, Code of Civil Procedure section 2015.5 provides that whenever any matter is required or permitted to be supported by a sworn statement, affidavit, or verification under California law, it may be supported with equal force and effect by an unsworn written statement that recites it is certified or declared “to be true under penalty of perjury, is subscribed by the declarant, and either (1) if executed within California, states the date and place of execution, or (2) if executed anywhere, states the date of execution and that it is certified under California law. Although both Plaintiffs signed the Complaint on July 14, 2025 (Compl. at p. 3.), Plaintiffs failed to do so under penalty of perjury and failed to state the place where the execution occurred.

Plaintiffs' failure to properly verify the Complaint renders the Complaint insufficient to support their real property claim. However, Plaintiffs may cure the defect by seeking leave of the court to file an amendment. (United Farm Workers of America, AFL-CIO v. Agricultural Labor Relations Bd. (1985) 37 Cal.3d 912, 915; Board of Trustees of Leland Stanford Jr. Univ. v. Superior Court (2007) 149 Cal.App.4th 1154, 1167; Code Civ. Proc., §§ 472, 473, subd. (a)(1).)

Without a verified complaint, Plaintiffs cannot demonstrate a valid real property claim which supports a notice of lis pendens.

Therefore, the court denies Plaintiffs' motion to for  
leave to file a new notice of pendency (lis pendens) without prejudice.

#### CONCLUSION and ORDER

Motion is denied without prejudice.

Plaintiffs to give notice.